

25PSCV00027 25PSCV00027

County: los-angeles

Division: Civil Law and Motion

Department: G

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Case Number: 25PSCV00027 Hearing Date: August 12, 2026 Dept: G

Petitioner

Wei Liu's Petition for Approval of Compromise of Claim or Action or Disposition
of Proceeds of Judgment for Plaintiff/Claimant Aiden Lew, a Minor

Respondent:

NO OPPOSITION

TENTATIVE

RULING

Petitioner

Wei Liu's Petition for Approval of Compromise of Claim or Action or Disposition
of Proceeds of Judgment for Plaintiff/Claimant Aiden Lew, a Minor is CONTINUED.

BACKGROUND

This

is a personal injury action. On June 18, 2023, plaintiff Aiden Lew (Lew), the minor child of petitioner Wei Liu (Liu), allegedly sustained injuries at a hotel property owned and operated by defendant 9920 Management LLC (9920 Management) when a defective shower caused him to slip and fall and hit a nearby toilet.

On

January 3, 2025, Lew filed the Complaint, alleging causes of action for (1) general negligence, (2) premises liability, and (3) products liability.

On

September 10, 2025, the parties informed the court that they settled the case. On May 12, 2026, the court continued a hearing to allow Liu to sign the petition for approval of minor's compromise. On May 29, 2026, Liu filed the petition, which is unopposed. On June 2, 2026, the court continued the hearing on the petition. On August 5, 2026, Liu requested more time to review and refile the petition.

This case is set for a continued order to show cause re: dismissal (settlement) and minor's compromise on August 12, 2026.

ANALYSIS

Liu seeks the court's approval of a settlement reached between the plaintiffs and 9920 Management. For the following reasons, the petition is CONTINUED.

Legal
Standard

An enforceable settlement of a minor's or incompetent's claim can only be consummated with court approval. (Prob. Code, §§ 2504, 3500, 3600 et seq.; Code Civ. Proc., § 372.) For this purpose, a petition for approval must be presented to the court, and until it is granted, there is no final settlement. (*Scruton v. Korean Air Lines Co.* (1995) 39 Cal.App.4th 1596, 1603–1606.) Any settlement agreement therefore is voidable by the minor's guardian ad litem. (*Id.* at 1606.)

Probate Code section 3600 et seq. governs how the settlement proceeds are to be paid. Pursuant to Probate Code section 3601, the order shall approve payment of reasonable expenses from the settlement as follows:

The court making the order or giving the judgment referred to in Section 3600, as a part thereof, shall make a further

order authorizing and directing that such reasonable expenses (medical or otherwise and including reimbursement to a parent, guardian, or conservator), costs, and attorney's fees, as the court shall approve and allow therein, shall be paid from the money or other property to be paid or delivered for the benefit of the minor or incompetent person.

(Prob. Code, § 3601, subd. (a).)

In

cases pursuant to Probate Code section 3601, "unless the court has approved the fee agreement in advance, the court must use a reasonable fee standard when approving and allowing the amount of attorney's fees payable from money or property paid or to be paid for the benefit of a minor or a person with a disability." (Cal. Rules of Court, rule 7.955(a)(1).) In doing so, "[t]he court must give consideration to the terms of any representation agreement made between the attorney and the representative of the minor or person with a disability and must evaluate the agreement based on the facts and circumstances existing at the time the agreement was made, except where the attorney and the representative of the minor or person with a disability contemplated that the attorney's fee would be affected by later events." (Cal. Rules of Court, rule 7.955(a)(2).)

Discussion

Pursuant

to the settlement agreement reached between the parties, 9920 Management agrees to pay a total of \$40,000.00 to Lew. (See 5/29/2026 Pet., ¶ 10.) The petition requests that \$4,037.50 be used for medical expenses, \$16,000.00 be used for attorney's fees, \$1,510.17 be used for other expenses, and \$18,452.33 for Lew. (See 5/29/2026 Pet., ¶¶ 12–16.)

"In

determining whether to grant a guardian ad litem's petition to approve a settlement of the ward's claims, a court must determine whether it is reasonable and in the minor's best interest."

(Chui v. Chui (2022) 75 Cal.App.5th 873, 899.) Generally, courts must consider the following factors: 1) the circumstances of the accident or other incident giving rise to the litigation, particularly the facts bearing on the payor's potential liability and the minor's damages; 2) the amount of the proposed settlement; 3) how the settlement will be paid (e.g. in a lump sum or via an annuity); 4) the nature of the injury and the minor's current medical status and prognosis; and

5) the amount of attorneys' fees and other transaction costs being requested. (See, e.g., Kostakos v. Holewinski (Dec. 6, 2019, 37-2018-00029286-CU-PA-CTL) [nonpub. opn.], applying Cal. Rules of Court, rule 7.950.)

Here,
regarding medical expenses, counsel represents that they need more time to review medical records and prepare a corrected MC-350 petition. (See 8/5/2026 Rondel Decl., ¶ 6.)

Accordingly,
the petition to confirm minor's compromise is CONTINUED and Liu is ORDERED to FILE a corrected MC-350 PETITION.

CONCLUSION

For
these reasons, the petition for approval of minor's compromise is CONTINUED to a date to be determined at the hearing in Department G (Pomona).

Petitioner

Wei Liu is ORDERED to FILE a corrected MC-350 PETITION.